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Submitter Information

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General Comment

See attached file(s)

Attachments

AI Action Plan Comment

I write to express some serious reservations about the state of generative AI in the United States at the moment, and to recommend several principles that should be applied to the development and implementation of the Action Plan. I am a library paraprofessional and work with technology every day, and have become quite familiar with AI tools as a result; I am also a writer who doesn't want her words to be used to enrich the largest companies in America.

At present, there is a profound lack of clarity in the law regarding the use of publicly-available but non-public-domain material in the training of generative AI models, especially large language models (LLMs) and image generators. Some tech companies have argued that principles of fair use permit them to use anything that exists on the public Internet to train their models; this is a profound abuse of the principle of fair use, which is intended to allow the *limited* use of *portions* of copyrighted material for *specific* (principally educational or other nonprofit) purposes (17 U.S.C. § 107). If accepted, this argument would pervert the fair-use doctrine by using it to legitimize massive use of the entirety of a copyrighted work for commercial purposes, without the permission of, or compensation for, rights-holders. The Action Plan needs to specifically address and rebut this contention.

Turning from copyright to patent law, tech companies like Google and Meta have argued publicly that American innovation in AI will be impossible if they are not permitted to train their models on anything they happen to find on the Internet, without compensation to, permission from, or even *awareness* of the creator of that thing. This is not only nonsensical (the tech companies have somehow managed to survive this long without being allowed to steal other people's work for their own profit) but entirely backwards: innovation in **every** field will be stifled if the tech companies are allowed to leech whatever they want from anything and everything without restriction, permission, or compensation. Art, music, literature, code – what incentive is there to create if one knows that Google or Meta or Open AI will just vacuum it up, repurpose it, and use it to make even more money? The Action Plan must reject this argument entirely, and prioritize the interests of individual human creators over those of artificial content aggregators.

Animating these objections are three key principles that should be foregrounded as the Action Plan is developed and put into practice. Firstly, **consent**: the government should ensure that the works and words of artists, other creators, and all Americans are not used to train generative AI models without their express consent -- on an opt-in basis, with fair compensation for this use. Secondly, **authenticity**: if a technology company uses AI tools to create a piece of content, it should be labeled as such so that consumers are not misled – and the training data used to create it should be disclosed. There is a clear need for a consumer to know whether something that they are using, reading, or watching was created by an actual human or by an LLM. And thirdly, **innovation**: the vital importance to the American economy, and the American spirit, of individual artists, writers, musicians, coders, and creators of all kinds. These people and their art, their individual creations, are what makes generative AI work at all; if their work is to be used to train an AI model, it *must* be on their terms, and not on the terms of the largest companies in the world.

Personally, I am skeptical about the use of generative AI in general -- not all AI, for other types (such as those capable of machine learning) can be extremely beneficial without generative AI's inherent flaws. But everyone, regardless of their opinion of AI of any type, should be able to agree that giant technology companies should not have the right to use the fruits of other people's labor for free and without their consent.

Thank you for your time.